

CHAPTER – 8

POCSO (Protection of Children from Sexual Offences) Act, 2012

What are the features of the POCSO Act?

1. The act defines various types of offenses, touch-based, non-touch based, penetrative, pornographic offenses, etc. in detail and doesn't leave out any type of offense. All sexual abuses are defined under the act.
2. The act also defines that every person under 18 years of age will be considered a child.
3. The act has a feature of giving out compensation to the victim.
4. Only The courts which have been designated as POCSO Court will have the jurisdiction to hear the matter under this act. If a case has elements of the SCST act or any other act which has a special court along with elements of the POCSO Act, the matter would be heard by the POCSO court.
5. The concept of "Innocent till proven guilty" does not apply to POCSO cases, if a complaint is filed it will be presumed that the accused had the sexual intent.
6. There is a child-friendly procedure under this act, every stage is designed with keeping in mind that a child should not feel uncomfortable at any stage and the identity, as well as the privacy of the child, is protected.
7. If the child is going through abuse at home then the child will be relocated for care and Protection by the Child Welfare Commission.
8. If a child needs medical care, then it must be provided by Government or Private hospitals or both, without any demands for registration of cases from the Victim, under the Act. The first aid has to be provided free of cost.
9. If anyone has filed a false report with malafide intentions of ruining someone's reputation, and it is proven then action will be taken against them. A case can be registered for false reporting.
10. There is a provision for the mandatory report; if someone is aware that an offense under the POCSO act has occurred or will occur, and they do not report it then action can be taken against them. Because a child might not understand what is happening to them and they're unaware of reporting, hence the onus is on the adults who are aware of it to report the crime.